

26VECV02139 26VECV02139

County: los-angeles

Division: Civil Law and Motion

Department: W

Hearing date: 2026-09-01

Motion: PLAINTIFF'S DEMURRER TO DEFENDANT'S AMENDED ANSWER

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Case Number: 26VECV02139 Hearing Date: September 1, 2026 Dept: W

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

VARTOUI

OVAKIMIAN,

Plaintiff,

vs.

CITY OF LOS ANGELES and DOES 1

through 100, Inclusive;

Defendants.

CASE NO: 25VECV07301

[TENTATIVE]

ORDER RE:

PLAINTIFF'S

DEMURRER TO DEFENDANT'S AMENDED ANSWER

Dept. W

8:30 a.m.

September 1, 2026

[TENTATIVE] ORDER: The Court

OVERRULES Plaintiff's demurrer to Defendant's Answer as MOOT.

Background

This is a sidewalk slip and fall case. Plaintiff Vartoui Ovakimian alleges that on April 25, 2025, she tripped and fell while walking on a portion of sidewalk controlled and maintained by Defendant City of Los Angeles. Plaintiff alleges that Defendant failed to maintain the sidewalk in a safe condition fit for public use. Plaintiff also alleges that she was seriously injured as a result of the fall.

On April 10, 2026, Plaintiff brought suit against Defendant, alleging a single cause of action for Dangerous Condition of Public Property.

On June 18, 2026, Defendant filed their Answer.

On July 8, Plaintiff demurred to Defendant's Answer.

On August 19, 2026, Defendant filed an Amended Answer.

Now, the Court hears the instant demurrer.

Meet and Confer

Before filing a demurrer, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer. (CCP § 430.41(a) [emphasis added].) A declaration must be filed with a demurrer regarding the results of the meet and confer process. (CCP § 430.41(a)(3).)

Here, Plaintiff states that on July 8, 2026, she emailed and called

Defendant's counsel to discuss the issues raised in this pleading. (Demurrer, Tashjian Decl. ¶ 8.) Unfortunately, the parties were unable to resolve these issues informally. (Id. ¶ 9.) For these reasons, the Court finds Plaintiff has met their meet and confer obligations.

Discussion

Plaintiff demurs to the second, third, sixth, seventh, ninth, and tenth affirmative defenses raised in Defendant's Answer. (Demurrer, p. 2:2-14.) Plaintiff argues that Defendant has failed to allege facts sufficient to sustain any of these affirmative defenses. (Ibid.)

A demurrer to an answer may be appropriate if "[t]he answer does not state facts sufficient to constitute a defense [or] [t]he answer is uncertain." (CCP § 430.20(a-b).) The defendant bears the burden of proof to establish any new matters. (Harris v City of Santa Monica (2013) 56 Cal.4th 203, 239.) An affirmative defense is considered a "new matter" beyond a general denial. (CCP § 431.30(b)(2).) Thus, the answer must allege the facts on which the defense is founded. (See California Trust Co. v. Gustason (1940) 15 Cal.2d 268, 273.)

Having reviewed Defendant's initial answer, the Court agrees that Defendant fails to allege sufficient facts to support these claims. For example, in their sixth affirmative defense, Defendant alleges only that, "The claims are barred by the statute of limitations set forth in California Code of Civil Procedure §§ 335.1, 338, 339, 342, and Government Code § 945.6." (Answer ¶ 7.) However, Defendant does not allege any facts or details to support the assertion that these claims were brought after the statute of limitations expired. (See generally, Answer.) Thus, Defendant's Answer is insufficiently pled.

In Opposition, Defendant argues that this demurrer is moot. (Opp. p. 1:24-26.) On August 19, 2026, Defendant filed an Amended Answer that withdraws most of their affirmative defenses and pleads the second and ninth affirmative defenses in more detail. (See generally, Amended Answer.) Under CCP § 472(a), "A[a] party may amend its pleading once without leave of the court at any time before the answer, demurrer, or motion to strike is filed, or after a demurrer or motion to strike is filed but before the demurrer or motion to strike is heard if the amended pleading is filed and served no later than the date for filing an opposition to the demurrer or motion to strike." (CCP § 472(a) [emphasis added].) The hearing for

this demurrer is scheduled for September 1, 2026. Under CCP § 1005(b), Defendant's Opposition was due August 19, 2026 – the same day Defendant filed this Amended Answer. (CCP § 1005(b).) Thus, Defendant's Amended Answer is timely.

In Reply, Plaintiff argues that Defendant's Amended Answer fails to moot this motion. (Reply, p. 2:5-22.) Specifically, Plaintiff argues that Defendant already used their one-time right to amend a pleading without leave of court. (Ibid.) Defendant first filed their Answer on June 18, 2026. According to Plaintiff, Defendant filed an Amended Answer just seven days later on June 25, 2026. (Id. p. 2:5-7; see also, Id. p. 3:5-11.) However, the Court can find no evidence of an Amended Answer filing from Defendant on June 25, 2026. Based on the Court's records, Defendant filed their original Answer on the 18th of June, and then an Amended Answer on August 19th. Thus, as far as the Court can tell, this is Defendant's first amendment.

Given the confusion about Defendant's filing timeline, the Court intends to ask the parties for clarification at the hearing on this matter. Pending that discussion, the Court's tentative holding is to OVERRULE Plaintiff's demurrer to Defendant's Answer as MOOT.

Conclusion

The Court OVERRULES Plaintiff's demurrer to Defendant's Answer as MOOT.

IT
IS SO ORDERED, Defendant TO GIVE NOTICE.

September 1, 2026

Judge of the Superior Court